

CHAPTER 28

Partnerships

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THINKING STRATEGICALLY

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Some types of partnerships, such as a general partnership, can be easy to create. This can be beneficial, yet, in some cases, it may generate considerable unintended risks for the partners involved. At the end of this chapter, you will determine whether the actions of a software development team create a partnership and how this may strategically impact all of the parties involved.

Learning Objectives

After studying this chapter, students who have mastered the material will be able to

-  **LO 28-1** Identify the necessary elements of partnership formation.
-  **LO 28-2** Summarize the main differences between the RUPA and the UPA and explain their role as legal default rules.
-  **LO 28-3** Describe how partnership law governs the internal and external aspects of a partnership.
-  **LO 28-4** Recognize several important rights of partners.
-  **LO 28-5** Recognize several important duties of partners.
-  **LO 28-6** List several important partnership agreement provisions.
-  **LO 28-7** Explain the distinguishing attributes of limited partnerships and family limited partnerships.
-  **LO 28-8** Articulate the legal protections from personal liability afforded to the principals in an LLP.
-  **LO 28-9** Describe the various methods for partnership dissolution.